CONTRACTUAL CLAUSE CARD

Majority-of-the-Minority Disinterested Stockholder Approval

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

SOURCE: Merger Agreement Section 1.01 / Form 8-K Item 1.01 | OPERATIVE SECTION: Section 1.01 (Disinterested Stockholder Appro VERIFIED **n) & DGCL 144**

VERBATIM OPERATIVE CONTRACTUAL LANGUAGE (EXACT CITATION)

> *"The Merger Agreement conditions closing upon: (i) an affirmative vote of a majority of outstanding shares of Company Common Stock, and (ii) an affirmative vote of a majority of the votes cast by the disinterested stockholders (as defined in Section 144 of the DGCL)."*

TRIGGER EVENT

Stockholder vote at Special Meeting. Disinterested stockholders strictly exclude Investor Group (Penske Corp & Mitsui), Rule 16a-1(f) executive officers, and non-committee directors.

AMPLIFIER MECHANISM

Structuring standard as 'votes cast' rather than 'outstanding shares held by unaffiliated stockholders' creates mathematical low-turnout sensitivity (~15.0% public float approval under 30% minority turnout).

FINANCIAL / LEGAL EXPOSURE

18,007,168 unaffiliated public shares. Low voter turnout enables squeeze-out approval with as few as 2,701,076 affirmative votes (4.1% of total common equity).

CONTRACTUAL THRESHOLD

Majority of disinterested votes cast (potential Delaware Kahn v. M&F Worldwide Corp. MFW challenge).

RAVEN ADVERSARY STRATEGIC INTERPRETATION

Operative Relationship: Section 1.01 establishes a dual-approval structure intended to cleanse controller conflict. While insider shares are excluded from the disinterested tally, departing from the traditional MFW formulation (majority of all outstanding unaffiliated shares) to a 'votes cast' metric exposes the transaction to Delaware Court of Chancery Entire Fairness judicial review if challenged by minority institutional holders.

UNRESOLVED VARIABLE // INFORMATION GAP

Formal Delaware Chancery legal determination on whether 'votes cast' satisfies MFW business judgment review.

CONTRACTUAL CLAUSE CARD

Bilateral Termination Fees & Several Limited Guarantees

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

SOURCE: Merger Agreement Section 8.01 / 8.03 / Form 8-K Item 1.01 | OPERATIVE SECTION: Section 8.03(a) [Company Fee] & Section VERIFIED **er Reverse Fee]**

VERBATIM OPERATIVE CONTRACTUAL LANGUAGE (EXACT CITATION)

> *"Company Termination Fee is $383.0M payable upon entry into a Superior Proposal or adverse recommendation change; Buyer Reverse Termination Fee is $488.0M backed by several Limited Guarantees from Penske Corp and Mitsui."*

TRIGGER EVENT

Special Committee termination for an unsolicited Superior Proposal, or Parent financing/closing failure.

AMPLIFIER MECHANISM

$383.0M Target Fee represents ~4.4% of public float equity value; Buyer $488.0M Reverse Fee (~5.6% of public float) backstopped by sponsor equity commitments.

FINANCIAL / LEGAL EXPOSURE

Target Breakup Fee: $383.00M | Buyer Reverse Fee: $488.00M (Bilateral Asymmetry: $105.00M delta).

CONTRACTUAL THRESHOLD

Definitive fiduciary out termination or Buyer financing failure prior to Outside Date.

RAVEN ADVERSARY STRATEGIC INTERPRETATION

Operative Relationship: Section 8.03 establishes mutually exclusive liquidated damages. The $383.0M Company Termination Fee serves as structural friction against competing topping bids, while the $488.0M Buyer Reverse Fee provides closing assurance backed by several limited guarantees from Penske Corporation and Mitsui & Co.

UNRESOLVED VARIABLE // INFORMATION GAP

Allocation of several liability between Penske Corp and Mitsui in executed Limited Guarantees.

CONTRACTUAL CLAUSE CARD

Operative Outside Closing Date & Credit Agreement Waiver

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

SOURCE: Merger Agreement 8.01(b)(i) & U.S. Credit Agreement 13th Amendment | OPERATIVE SECTION: Section 8.01(b)(i) [Outside D VERIFIED **: Agreement Item 1**

VERBATIM OPERATIVE CONTRACTUAL LANGUAGE (EXACT CITATION)

> *"Lender consent and waiver of change-of-control non-compliance under the U.S. Credit Agreement remain effective provided closing occurs on or before five business days after the October 15, 2027 Outside Date."*

TRIGGER EVENT

Pendency of regulatory filings, licensing approvals, or proxy clearance beyond October 15, 2027.

AMPLIFIER MECHANISM

Lender consent expires five business days post-Outside Date; potential credit facility covenant breach if closing is delayed.

FINANCIAL / LEGAL EXPOSURE

Contractual long-stop date: October 15, 2027. Multi-billion dollar floorplan and credit facility continuity dependent on closing cadence.

CONTRACTUAL THRESHOLD

October 15, 2027 Outside Date (5 business day tolling window).

RAVEN ADVERSARY STRATEGIC INTERPRETATION

Operative Relationship: The October 15, 2027 Outside Date is contractually tied to debt facility validity. Unlike standard mergers where outside dates are purely bilateral between target and buyer, here credit agreement consent from captive OEM lenders strictly lapses five business days post-Outside Date.

UNRESOLVED VARIABLE // INFORMATION GAP

Formal extension terms beyond October 15, 2027 if state motor vehicle licensing is protracted.

CONTRACTUAL CLAUSE CARD

U.S. Credit Agreement Overadvance & Debt Acceleration

AUDIT ID: AUDIT-PENS-MOTO-20261021-REV1

SOURCE: Limited Consent and Thirteenth Amendment to U.S. Credit Agreement (Form 8-K) | OPERATIVE SECTION: Credit Agreement VERIFIED **& Form 8-K Item**

VERBATIM OPERATIVE CONTRACTUAL LANGUAGE (EXACT CITATION)

> *"Thirteenth Amendment waives change-of-control defaults, permits up to $1.8B in bridge/notes indebtedness, and expands revolver by $900.0M including an uncollateralized $400.0M Overadvance Commitment."*

TRIGGER EVENT

Closing of merger and incurrence of up to $1.8B in acquisition debt; potential 101% put on $497.7M 3.75% 2029 Notes.

AMPLIFIER MECHANISM

Overadvance commitment of $400.0M operates without traditional vehicle inventory collateral; 2029 Notes carry 101% put option upon Change of Control.

FINANCIAL / LEGAL EXPOSURE

$400.00M uncollateralized Overadvance | $497.70M 3.75% 2029 Notes Change-of-Control put liability.

CONTRACTUAL THRESHOLD

Credit agreement borrowing base exceedance / Indenture Change of Control trigger.

RAVEN ADVERSARY STRATEGIC INTERPRETATION

Operative Relationship: Concurrently with signing, PAG restructured its credit facilities with captive lenders (Mercedes-Benz Financial, Toyota Motor Credit, Daimler Truck Financial) to unlock liquidity. However, the $497.7M 3.75% 2029 Notes contain an independent 101% repurchase right that requires $502.7M cash if exercised.

UNRESOLVED VARIABLE // INFORMATION GAP

Form 10-Q confirmation of whether 2029 noteholders intend to exercise 101% put upon closing.